Gulf of Tonkin Resolution

U.S. Congress · Joint Resolution H.J. Res. 1145 · approved August 10, 1964

Source: Gulf of Tonkin Resolution (Aug. 7, 1964), text via the Avalon Project, Yale Law School. Public domain.

Following reported attacks on U.S. destroyers in the Gulf of Tonkin off North Vietnam, Congress passed this resolution by a vote of 416-0 in the House and 88-2 in the Senate. It gave Lyndon Johnson sweeping authorization to use military force in Southeast Asia without a formal declaration of war. Later investigations (and the 1971 Pentagon Papers) revealed that the second of the two reported attacks likely never happened. The resolution was repealed in 1971 amid debate over the Vietnam War, and helped prompt the 1973 War Powers Resolution.

Connect: The Gulf of Tonkin Resolution expanded presidential war powers without a formal declaration of war. Compare with WWI (April 1917 declaration) and Iraq 2003 (AUMF). What's the pattern?

Key Passages

Johnson's message to Congress

> Last night I announced to the American people that the North Vietnamese regime had conducted further deliberate attacks against U.S. naval vessels operating in international waters, and I had therefore directed air action against gunboats and supporting facilities used in these hostile operations.

No wider war

> As I have repeatedly made clear, the United States intends no rashness, and seeks no wider war. We must make it clear to all that the United States is united in its determination to bring about the end of Communist subversion and aggression in the area.

The Resolution

> That the Congress approves and supports the determination of the President, as Commander in Chief, to take all necessary measures to repel any armed attack against the forces of the United States and to prevent further aggression. … the United States is, therefore, prepared, as the President determines, to take all necessary steps, including the use of armed force, to assist any member or protocol state of the Southeast Asia Collective Defense Treaty requesting assistance in defense of its freedom. Section 3. This resolution shall expire when the President shall determine that the peace and security of the area is reasonably assured

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Cold War containment in Vietnam; reported North Vietnamese attacks on U.S. destroyers in the Gulf of Tonkin in August 1964.
Intended Audience *Who was the source written for?*	The president, the military, North Vietnam, and the American public; it was voted on by Congress.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Congress, accepting the Johnson administration's account of the attacks; antiwar critics and later evidence questioned that account.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. HIPP — antiwar documents: Compare the wartime expansion of executive power in 1964 with similar moments (1898, 1917, 1941, 2001).
2. Why is this resolution sometimes called a ‘blank check’ for war?
3. Identify ONE specific consequence of the resolution’s later repeal.

The Gulf of Tonkin Resolution

President Lyndon B. Johnson & the U.S. Congress · August 1964

Source: Gulf of Tonkin Resolution (Aug. 7, 1964), text via the Avalon Project, Yale Law School. Public domain. Non-contiguous passages are separated by [. . .]; shorter cuts inside a passage are marked with an ellipsis (. . .).

> After reported attacks on U.S. ships, Congress authorized the President "to take all necessary measures" in Southeast Asia — the legal foundation for the escalation of the Vietnam War.

President Johnson's message to Congress, August 5, 1964

Last night I announced to the American people that the North Vietnamese regime had conducted further deliberate attacks against U.S. naval vessels operating in international waters, and I had therefore directed air action against gunboats and supporting facilities used in these hostile operations. This air action has now been carried out with substantial damage to the boats and facilities. Two U.S. aircraft were lost in the action.

After consultation with the leaders of both parties in the Congress, I further announced a decision to ask the Congress for a resolution expressing the unity and determination of the United States in supporting freedom and in protecting peace in southeast Asia.

These latest actions of the North Vietnamese regime has given a new and grave turn to the already serious situation in southeast Asia. Our commitments in that area are well known to the Congress. They were first made in 1954 by President Eisenhower. They were further defined in the Southeast Asia Collective Defense Treaty approved by the Senate in February 1955.

[. . .]

As President of the United States I have concluded that I should now ask the Congress, on its part, to join in affirming the national determination that all such attacks will be met, and that the United States will continue in its basic policy of assisting the free nations of the area to defend their freedom.

As I have repeatedly made clear, the United States intends no rashness, and seeks no wider war. We must make it clear to all that the United States is united in its determination to bring about the end of Communist subversion and aggression in the area.

[. . .]

Joint Resolution of Congress, H.J. Res. 1145, August 7, 1964

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That the Congress approves and supports the determination of the President, as Commander in Chief, to take all necessary measures to repel any armed attack against the forces of the United States and to prevent further aggression.

Section 2. The United States regards as vital to its national interest and to world peace the maintenance of international peace and security in southeast Asia. Consonant with the Constitution of the United States and the Charter of the United Nations and in accordance with its obligations under the Southeast Asia Collective Defense Treaty, the United States is, therefore, prepared, as the President determines, to take all necessary steps, including the use of armed force, to assist any member or protocol state of the Southeast Asia Collective Defense Treaty requesting assistance in defense of its freedom.

Section 3. This resolution shall expire when the President shall determine that the peace and security of the area is reasonably assured by international conditions created by action of the United Nations or otherwise, except that it may be terminated earlier by concurrent resolution of the Congress.

Words to know

regime — a government, used here disapprovingly

resolution — a formal statement passed by Congress; here, the Gulf of Tonkin Resolution

subversion — secretly undermining a government from within

Consonant with — in agreement with

protocol state — a non-member country the treaty also promised to protect, such as South Vietnam

concurrent resolution — a measure passed by both houses of Congress that the President cannot veto